

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID WONG,

Petitioner

VS.

XIAOYAN MA,

Respondent

) Case Number: FDI-23-797598

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner David Wong (Father) and Respondent Xiaoyan Ma (Mother). The parties married on 3/3/2010. The parties disagree regarding their date of separation, but they agree their marriage lasted at least 12 years. The parties have one minor child, Jordan (DOB: 8/5/2011, age 14). Father is represented by attorney Frank Kim. Mother is self-represented.
- 2) On 11/8/2024, the Court issued a 2-Year Restraining Order After Hearing protecting Father against Mother. The restraining order is set to expire on 11/8/2026.
- 3) On 12/8/2025, following a trial before Judge Wiley which occurred on 4/9/2025, 4/17/2025, 6/11/2025, 7/8/2025, and 7/11/2025, Judge Wiley issued a Final Statement of Decision. Judge Wiley found that in February 2023, after the Petition for Dissolution and been filed and served, Mother transferred various life insurance policies to her adult daughter Shiyi Yang in violation of the ATROs. Judge Wiley found these unilateral transfers to be void. The Statement of Decision provides in pertinent part:

- a. Mother shall pay Father \$74,417.32, which constitutes half of the community property interest in the various identified life insurance policies or transfer to Father life insurance policies with an equivalent cash value or a combination of money and policies within 60 days of the date of the Final Statement of Decision.
- b. Following the equalization payment, the Court awards the life insurance policies insuring Father and Jordan to Father. Those policies, and the monthly premiums, will be transferred to Father as the owner of those policies. Those policy numbers are #8573 (insured party is Father), #8890 (insured party is Father), and #7087 (insured party is Jordan).
- c. Mother shall pay Father \$7,500 for prevailing party attorney's fees incurred pursuant to Family Code section 6344 and \$608 in costs within 45 days of the Final Statement of Decision.
- d. Father shall pay Mother \$20,000 in Family Code section 2030 attorney's fees within 45 days of the date of the Final Statement of Decision.

4) On 12/12/2025, Mother filed a Notice of Appeal of the 12/8/2025 Statement of Decision.

5) On 12/15/2025, a Court of Appeal Clerk filed a Notice of Filing of Notice of Appeal.

6) On 12/17/2025, Mother filed an Appellant's Notice Designating Record on Appeal.

7) On 12/17/2025, Mother filed a Request for Order. Mother states she does not have sufficient funds, assets, or access to credit to make the payments ordered within the Statement of Decision and she has no present ability to obtain such funds. Mother also states, "Although one item is currently titled in my name, I am presently unable to comply with the ownership or transfer provisions of the Final Statement of Decision because I lack unilateral legal authority and the practical ability to complete any transfer while the appeal is pending." Mother states, "Without a stay of enforcement, I face the risk of enforcement actions or sanctions despite my present inability to comply and the pendency of the appeal." Mother asks the Court to:

- a. Stay enforcement of the 12/8/2025 Final Statement of Decision pending appeal;
- b. Determine Mother's inability (not refusal) to comply;
- c. Clarify the stay covers insurance equalization, attorney's fees, and ownership / transfer obligations; and

- 1 d. Bar enforcement or sanctions as to those provisions during the appeal.
- 2 8) Within the Findings and Order After Hearing filed 4/17/2026, the Court adjudicated Mother's
- 3 12/17/2025 Request for Order and made the following findings and orders:
- 4 a. The Court finds that the provision requiring Mother to pay Father \$74,417.32 in cash "or
- 5 transfer to Father life insurance policies with an equivalent cash value or a combination
- 6 of money and policies" is a money judgment under Code of Civil Procedure section
- 7 680.270 and that Code of Civil Procedure section 917.1(a) applies to Mother's request for
- 8 a stay of enforcement of this provision.
- 9 b. Mother's request that the Court make a finding that Mother has an inability to comply
- 10 with the identified portions of the Judgment is denied. The Court does not find that
- 11 Mother has an inability to comply with the identified portions of the Judgment.
- 12 c. No later than Friday, 4/24/2026 at 5:00 PM Mother shall provide to the Department 404
- 13 Department Clerk a cashier's check in the amount of \$62,525.32 for an undertaking.
- 14 d. The Court will set a review hearing of Thursday, 5/28/2026 at 9:00 AM in Dept. 404 to
- 15 review Mother's compliance with this order and to determine whether to grant Mother's
- 16 request for a stay.
- 17 9) On 4/24/2026, Mother filed a Declaration stating she is unable to comply with the Court's order
- 18 requiring an undertaking because she lacks access to sufficient liquid funds.
- 19 10) On 5/12/2026, the Court denied an ex parte Request for Order filed by Mother that same day
- 20 requesting that the Court reduce or permit partial and or installments on the undertaking pending
- 21 appeal.
- 22 11) On 5/13/2026, Mother filed a Declaration asking the Court to "consider preservation of the
- 23 existing status and structure of the life insurance policies pending appellate review and the
- 24 practical effect that transfer, surrender, withdrawal, depletion, or other material alteration of the
- 25 policies may have on meaningful appellate review before those appellate issues are resolved."
- 26 12) On 5/18/2026, Father filed a Declaration arguing that a stay is not justified in this matter and that
- 27 Mother has no legal ground for winning her appeal. Father asks the Court to enforce Judge
- 28 Wiley's Final Statement of Decision and transfer the following life insurance policies into his
- 29 name: Transamerica life insurance policies #8573 (with a cash surrender value of \$83,074.77),

1 #8890 (with a cash surrender value of \$65,792.84), and #7087 (with a cash surrender value of
2 \$6,381.64). However, it appears Father is not asking for the full cash surrender value of these
3 policies to be transferred to Father, but rather \$30,000 from policy #8573, \$30,000 from policy
4 #8890, and \$2,525.32 from policy #7087, for total cash value of \$62,525.32 which is the net
5 amount Mother owes Father.

6 13) On 5/19/2026, Mother filed a Declaration. Mother states that the insurance policies at issue were
7 originally funded using money connected to property sale proceeds from China involving her
8 adult daughter Shiyi Yang. Mother states that because the policies were funded using money
9 connected to Shiyi Yang, Shiyi Yang's interests are implicated in Father's requests that policies
10 be transferred to him. Mother states that Shiyi Yang is the owner of policies #8890 and #7087.
11 Mother states the policies should not be accessed, withdrawn against, surrendered, depleted,
12 transferred, or otherwise materially altered before completion of the appeal. Mother states,
13 "Preservation of the existing condition and structure of the policies is necessary to maintain the
14 status quo while the appellate issues concerning ownership, transfer, valuation, equalization, and
15 third-party interests remain unresolved."

16 14) On 5/21/2026, Father filed a Declaration stating that Judge Wiley already determined that the
17 home in China whose proceeds were used to purchase the life insurance policies belonged to
18 Mother and not her daughter Shiyi Yang. Judge Wiley also determined that transfer of ownership
19 of the life insurance policies to Shiyi Yang only occurred after Mother filed for Dissolution of
20 Marriage, and that transfer is void because it is in violation of the ATROs. Father reiterates his
21 request that the identified policies be transferred to him.

22 15) On 5/22/2026, Mother filed a Reply Declaration reiterating her request that the Court deny
23 Father's requests, preserve the disputed policies, and maintain the status quo pending appellate
24 review.

25 16) At the prior 5/28/2026 hearing (per the Findings and Order After Hearing filed 6/8/2026), the
26 Court adopted its Tentative Ruling without objection and ordered the following:

- 27 a. On the Court's own motion, the Court hereby joins Shiyi Yang as a party to this
28 proceeding under California Rules of Court, rule 5.24(e)(2). The Court will issue a
29 Summons (Joinder), which will be mailed to both parties. No later than 6/15/2026,

1 Mother must: (a) have Ms. Yang served with a copy of the Summons as well as a copy of
2 the Findings and Order After Hearing for the 5/28/2026 hearing date using a service
3 method set forth in California Rules of Court, rule 5.68 and (b) file a Proof of Service of
4 Summons (POS-010) showing compliance with this order and serve a copy of the POS-
5 010 on Father's attorney.

6 b. Ms. Yang is precluded from transferring ownership of or making any changes to
7 TransAmerica life insurance policies ending in #8573, #8890, and #7087. Ms. Yang is
8 also precluded from borrowing against, withdrawing, or transferring any of the cash
9 surrender values of these plans. In other words, TransAmerica life insurance policies
10 ending in #8573, #8890, and #7087 are hereby frozen.

11 c. As soon as possible, Father shall have a copy of the Findings and Order After Hearing for
12 the 5/28/2026 hearing date served on the appropriate TransAmerica representative to
13 inform TransAmerica of this order and he shall also file and serve a Proof of Service
14 evidencing service of this order.

15 d. A review hearing was set for Thursday, 7/9/2026 to review the parties' compliance with
16 the above orders and to determine whether to grant Mother's request for a stay.

17 17) Due to the Court's oversight, the Summons (Joinder) was not issued until 6/23/2026.

18 18) On 6/29/2026, Father filed an Update Declaration. Father states his attorney emailed a copy of the
19 Summons (Joinder) to Ms. Yang. Father also states that TransAmerica told his attorney that it
20 cannot "follow the court order" because "the request must come from the owner of each life
21 insurance policy." Father's attorney asked Mother and Ms. Yang to "submit a freeze on any type
22 of transactions of their respective TransAmerica accounts since Petitioner is not allowed to."
23 Father states he is unaware if anything has been submitted to TransAmerica by Mother or Ms.
24 Yang. Father asks the Court to deny Mother's motion to stay.

25 19) On 6/29/2026, Mother filed a Declaration stating the appeal remains pending. Mother states,
26 "preservation of the current status of the disputed life insurance policies remains necessary
27 pending completion of appellate review."

28 20) On 7/6/2026, Mother filed another Declaration stating she was unaware the Summons (Joinder)
29 had been issued until 6/29/2026. Mother states she personally handed the documents to Ms. Yang

on 6/29/2026. Mother states she later learned she is not permitted to personally serve the Summons on Ms. Yang, and so Mother had a third party mail the documents to Ms. Yang. Mother then subsequently realized that service by mail requires a signed Notice and Acknowledgment of Receipt, and so on 7/3/2026, Mother had a third party mail the Summons (Joinder), Findings and Order After Hearing, Notice and Acknowledgment of Receipt, and a postage-paid return envelope to Ms. Yang. However, as of 7/3/2026, she has not received a signed Notice and Acknowledgment of Receipt from Ms. Yang and so she has not filed a Proof of Service as required by the Court's prior order. Mother also states that she tried contacting the ACCESS Center for assistance but they did not respond to her inquiries.

B. Findings and Order

- 1) The Court finds Ms. Yang has not yet been properly served with the Summons and Findings and Order After Hearing (filed 6/8/2026). In light of the Court's delayed issuance of the Summons (Joinder), good cause exists to extend the deadline for service and to continue this hearing briefly to **Thursday, 7/30/2026 at 9:00 AM in Dept. 404** to review the parties' compliance with the orders outlined below and to determine whether to grant Mother's request for a stay.
- 2) If Ms. Yang does not provide the Notice and Acknowledgment of Receipt of the Summons by 7/10/2026, Mother shall have a third-party age 18 or older perform personal service of the Summons and the Findings and Order After Hearing (filed 6/8/2026) on Ms. Yang. If Mother is unable to complete personal service, Mother shall have a third-party age 18 or older effectuate service using another method authorized by California Rules of Court, rule 5.68.
- 3) Mother shall also have a copy of the Findings and Order After Hearing for the 7/9/2026 hearing served on Ms. Yang by a third-party age 18 or older.
- 4) In advance of the next hearing date, Mother shall file a Proof of Service of Summons (POS-010) showing compliance with this order and serve a copy of the POS-010 on Father's attorney.
- 5) The following order remains in full force and effect: Ms. Yang is precluded from transferring ownership of or making any changes to TransAmerica life insurance policies ending in #8573, #8890, and #7087. Ms. Yang is also precluded from borrowing against, withdrawing, or transferring any of the cash surrender values of these plans. In other words, TransAmerica life insurance policies ending in #8573, #8890, and #7087 are hereby frozen.

- 1 6) In advance of the next hearing date, Mother and/or Shiyi Yang, to the extent either is the owner of
2 TransAmerica life insurance policies ending in #8573, #8890, and #7087, shall execute and
3 transmit to TransAmerica a Letter of Instructions directing TransAmerica to place an immediate
4 freeze on those policies, prohibiting any transfer of ownership, withdrawal, loan, or any other
5 transaction affecting the policies or their cash surrender values without further order of this Court.
6 Mother and Ms. Yang shall thereafter serve on Father's attorney a copy of the Letter of
7 Instructions as well as proof of transmission of the Letter of Instructions to TransAmerica.
8 7) At least 10 calendar days prior to the next hearing date, the parties shall file and serve update
9 declarations (not to exceed 5 pages in length, not including exhibits).
10 8) The Court will prepare the Findings and Order After Hearing.
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